

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

QVC, INC. AND CORNERSTONE BRANDS, INC., *Complainants*

v.

OCEAN NETWORK EXPRESS PTE. LTD., *Respondent*.

DOCKET NO. 25-09

Serviced: November 24, 2025

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

FIRST AMENDED SCHEDULING ORDER

On August 29, 2025, the parties filed a joint status report and proposed discovery schedule that exceeded limitations in the applicable regulation but did not provide a detailed explanation to support granting an extension. (Dkt. 15.) On September 15, 2025, the scheduling order was served that provided for the completion of discovery within the applicable 150-day deadline. (Dkt. 18.) Because the parties had indicated in their joint status report that additional time may be necessary due to significant volume of discovery anticipated, the order directed the parties to file a Joint Status Report regarding discovery no later than December 1, 2025. On November 20, 2025, the parties filed a Joint Status Report detailing the discovery conducted to date, specifying the remaining discovery not yet completed, and stating that the current schedule would not allow the parties sufficient time to prepare their claims and defenses. (Dkt. 20.)

In their recently filed status report, the parties state that they: 1) served their initial request for production of documents and electronically stored information (ESI) and interrogatories; and 2) served objections and initial responses to initial requests for production of documents and initial interrogatories. The parties state that they have agreed upon a protocol regarding ESI. The parties state that upon application of this protocol it has been determined that Complainant's database contains .5 terabytes of potentially responsive data constituting approximately 1.5 million documents. The parties plan to perform a first level review after the initial database has been electronically searched and narrowed that will require a significant amount of time, and that production will occur thereafter on a rolling basis. The parties state that applying the protocol to Respondent's database identified 1.9 million potentially responsive documents, that Respondent now believes the agreed upon search terms are too broad, that Respondent approached Complainant about narrowing the search terms, that the government shutdown prevented a timely determination on this issue, and that the parties agreed to move forward with discovery in light of the current scheduling order while reserving their rights and defenses. The parties state that even if the search terms were narrowed, Respondent's responsive database would contain over 850,000 potentially responsive documents. The parties state that Respondent has commenced their first level review. (Joint Status Report at 1-2.)

The parties stated that the third-party vendors engaged to conduct collection, initial electronic search, and hosting of data estimate that the first level review for responsiveness, confidentiality, and privilege will take 5 to 8 weeks before documents can begin to be produced on a rolling basis. As a result, the first document production is anticipated to occur between December 12 and December 26, 2025. For this reason, the parties state that they are unable to comply with the deadlines in the current schedule, including but not limited to: 1) submit unresolved disputes concerning initial requests for production and interrogatories by October 28, 2025; 2) substantially complete the production of documents and ESI in response to initial requests for production by November 17, 2025; and 3) complete fact depositions by December 15, 2025. The parties state that based on discovery completed to date that as many as 22 party witnesses and 7 third-party witnesses will need to be deposed, including one liability and one damages expert (Joint Status Report at 3-4.)

Upon review of the record and representation of counsel in their joint status report, I find that the parties have established good cause to extend the current schedule by a period of 5 to 6 months in order to fully develop the record and present their claims and defenses. Given that approximately 3.5 million potentially responsive documents require initial review for responsiveness and privilege before being exchanged on a rolling basis, and the large number of expert and lay witnesses to be deposed, it is clear that the parties will need more than the generally applicable 150-day period to complete discovery. This finding is true despite that it will necessitate extension of the current June 17, 2026, initial decision deadline. Moreover, the record establishes that the parties have worked diligently and cooperatively to move forward with discovery despite the government shutdown from October 1, 2025, through November 12, 2025, due to a lapse in appropriations. Thus, the record establishes that an extension is required despite the best efforts of counsel to comply with the current schedule.

The parties are hereby **ORDERED** to follow this schedule:

Event	Deadline
Last day to file motion for extension of scheduling deadlines	12/01/2025
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	02/17/2026
Substantial completion of productions of documents and ESI in response to initial RFPs	03/9/2026
Complete depositions of fact witnesses	04/24/2026
Last day to serve interrogatories, requests for admission, and RFPs	04/24/2026

Joint Status Report regarding discovery	05/15/2026
Disclosure of initial expert reports, if any	05/26/2026
Disclosure of rebuttal expert reports, if any	06/09/2026
Last day to respond to interrogatories, requests for admission, and RFPs	06/15/2026
Close of fact discovery	06/15/2026
Complete expert depositions and all discovery	06/30/2026
Complainant's initial brief, proposed findings of fact, and appendix	07/31/2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	08/31/2026
Complainant's reply and responses to proposed findings of fact	09/14/2026

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Motions will not automatically meet other deadlines in the proceeding. If a motion could impact on other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension.

**MARY A.
HERVEY -S**

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Mary Apostolakos Hervey
Administrative Law Judge